

Senate File 315

H-1216

1 Amend Senate File 315, as passed by the Senate, as follows:

2 1. Page 5, after line 5 by inserting:

3 <11. All of the following shall be incorporated as terms
4 of the participant bidding agreement and the pharmacy benefits
5 manager's services contract awarded to the pharmacy benefits
6 manager reverse auction winner:

7 a. The department shall require an average acquisition
8 cost reimbursement methodology for pharmacy ingredient cost
9 reimbursement of all prescription drugs covered by a pharmacy
10 benefits manager.

11 b. A reasonable professional service fee shall be provided
12 to a pharmacist for the pharmacist's time and service included
13 in dispensing prescription drugs covered by a pharmacy benefits
14 manager.

15 c. A covered person shall not be prohibited from filling a
16 prescription drug order at any pharmacy in the state provided
17 that the pharmacy accepts the same terms and conditions as the
18 pharmacies participating in the covered person's health benefit
19 plan's network.

20 d. With the exception of incentives in value-based programs
21 established by a health carrier or a pharmacy benefits manager
22 to promote the use of higher-quality pharmacies, a pharmacy
23 benefits manager shall not impose different cost-sharing or
24 additional fees on a covered person based on the pharmacy at
25 which the covered person fills a prescription drug order.

26 e. A pharmacy benefits manager shall not require a covered
27 person, as a condition of payment or reimbursement, to purchase
28 pharmacy services, including prescription drugs, exclusively
29 through a mail-order pharmacy.>

30 2. Page 5, line 6, by striking <11.> and inserting <12.>

31 3. Page 5, line 25, by striking <12.> and inserting <13.>

COMMITTEE ON COMMERCE

LUNDGREN of Dubuque, Chairperson